

		minniezh2008@yahoo.com The clerk is directed to give notice as described above.
5.	<i>Petition of Strom</i> 2025-01481925	Before the court is the amended petition of petitioner Philip Gabriel Strom (Petitioner) seeking “declarative relief acknowledging one same person.” As set forth more fully below, the petition is DENIED WITHOUT PREJUDICE. By this petition, Petitioner seeks an order declaring his ancestors had presented under the anglicized version of their birth names and are the same person, i.e., deceased great grandmother, Mary Antoinette Bianchi, presented as Mary Whilte; deceased great-great grandfather, Cesidio Bianchi, presented as Jesse White, and his great-great grandmother, Genoveffa Palma, presented as Genevieve Palmer. This relief is sought to enable Petitioner to obtain Italian citizenship based on these ancestors. On March 2, 2026, the court noted the original petition filed on May 12, 2025, lacked any authority, statutes, codes or case law, and any amended petition would need to include such authority and be supported by certified copies or originals of any documents. (ROA 9.) In response, Petitioner filed the amended petition seeking the same relief as the original petition, and citing Code of Civil Procedure section 1060 and related case law on declaratory relief pursuant to that statute. “To qualify for declaratory relief under section 1060, plaintiffs [are] required to show their action . . . presented two essential elements: ‘(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party.’ [Citation.] ‘The “actual controversy” language in . . . section 1060 encompasses a probable future controversy relating to the legal rights and duties of the parties.’ [Citation.] It does not embrace controversies that are ‘conjectural, anticipated to occur in the future, or an attempt to obtain an advisory opinion from the court.’ [Citation.]” (<i>Lee v. Silveira</i> (2016) 6 Cal.App.5th 527, 546.) ““While section 1060’s language “appears to allow for an extremely broad scope of an action for declaratory relief” [citation], “an actual controversy that is currently active is required for such relief to be issued and both standing and ripeness are appropriate criteria in that determination. [Citation.]” [Citation.] “One cannot analyze requested declaratory relief without evaluating the nature of the rights and duties that the plaintiff is asserting, which must follow